

relief from Default. Defendant did not attach a copy of her proposed Answer to her current motion to set aside the default. (Defendant filed a proposed Answer with her original motion to set aside the default, but she did not file one with her current motion.) The motion must be denied for this reason.

However, the courts have found that this requirement is not jurisdictional and substantial compliance may suffice. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal. App. 4<sup>th</sup> 393, 403) In that case, the court found substantial compliance where the proposed Answer was brought to the motion hearing and granted a motion for relief from default.

Order:

The motion to set aside default and default judgment is denied, due to the Defendant's failure to submit a proposed Answer with her motion. In order to preserve her right to attend the hearing on February 6, 2026 and potentially bring a copy of a Proposed Answer, Defendant must email the court at [dept32@contracosta.courts.ca.gov](mailto:dept32@contracosta.courts.ca.gov) by 4:00 pm on February 5, 2026 and indicate her request to argue the case on February 6, 2026. The court reserves the right to reverse this order should Defendant email or bring a copy of a proposed Answer to the hearing on February 6, 2026 at 9:00 am in Department 32.

If no party emails the court to request argument by 4:00 p.m. on February 5, 2026, this tentative ruling becomes the order of the court.

**9. 9:00 AM CASE NUMBER: N23-2169**  
**CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT**  
**\*HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS**  
**FILED BY: DEBRO, KARL**  
**\*TENTATIVE RULING:\***

Continued by the Court to April 10, 2026.

**10. 9:00 AM CASE NUMBER: N25-0754**  
**CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: MIERZWA, DAN M.**  
**\*TENTATIVE RULING\***

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

**11. 9:00 AM CASE NUMBER: N25-0756**  
**CASE NAME: RAINS LUCIA STERN ST. PHALLE & SILVER, PC VS. DAN MIERZWA**  
**HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE**  
**FILED BY: MIERZWA, DAN M.**  
**\*TENTATIVE RULING\***

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

**12. 9:00 AM CASE NUMBER: N25-0837**  
**CASE NAME: MCDONALD & MANNION VS. DAN MIERZWA**  
**HEARING ON DEMURRER TO: TO PETITION FOR WRIT OF MANDATE**  
**FILED BY: MIERZWA, DAN M.**  
**\*TENTATIVE RULING\***

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

**13. 9:00 AM CASE NUMBER: N25-0837**  
**CASE NAME: MCDONALD & MANNION VS. DAN MIERZWA**  
**\*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITION AND MEMORANDUM OF POINTS AND AUTHORITIES**  
**FILED BY: MIERZWA, DAN M.**  
**\*TENTATIVE RULING\***

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

**Discovery Law & Motion**

**14. 9:01 AM CASE NUMBER: C23-02335**  
**CASE NAME: KROPP V SRVUSD**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES. SET ONE TO DEF SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT**  
**FILED BY: KROPP, SPENCER**  
**\*TENTATIVE RULING:\***

Plaintiff seeks an Order compelling Defendant SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT (SRVUSD)'s Further Responses to Plaintiff's Special Interrogatories, Set One and for an award of monetary sanctions in the amount of \$3,486.00 imposed upon Defendant SRVUSD and its counsel, Anne B. Miller and Brian A. Duus of Leone Alberts & Duus, pursuant to Code of Civil Procedure (CCP) §§ 2030.300 and 2023.030.<sup>1</sup>

**SPECIAL INTERROGATORY NO. 36:**

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the SECOND INCIDENT, and DESCRIBE the outcome or results of that investigation.

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<sup>1</sup> All statutory references are to CCP unless otherwise designated.